

TENTATIVE RULING

Case: Arfsten v. Woodland Joint Unified School District
Case No. CV2025-1304

Hearing Date: March 3, 2026 **Department Fourteen** **9:00 a.m.**

Motion for reconsideration:

Plaintiff Sherri Arfsten's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Plaintiff's motion for reconsideration of January 21, 2026, Order is **DENIED**. (Code Civ. Proc, § 1008, subd. (a).) Plaintiff fails to show new or different facts, circumstances, or law. (*Mink v. Superior Court* (1992) 2 Cal.App.4th 1338, 1342; *In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468 [facts of which a party seeking reconsideration was aware at the time of the original ruling are not new or different facts to support a trial court's grant of reconsideration]; see *Pazderka v. Caballeros Dimas Alang, Inc.* (1998) 62 Cal.App.4th 658, 670; *Graham v. Hansen* (1982) 128 Cal.App.3d 965, 971.) The Court finds that:

- Plaintiff fails to provide any argument, much less legal authority, regarding the claimed procedural defects. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].) Furthermore, plaintiff admits she raised these procedural defects in her opposition to defendant Woodland Joint Unified School District's ("WJUSD") demurrer to plaintiff's second amended complaint. (*In re Marriage of Herr, supra*, 174 Cal.App.4th at p. 1468; plaintiff's MPA, p. 2, l. 10.)
- There are no due process concerns because plaintiff was advised in the Court's tentative ruling on WJUSD's demurrer to plaintiff's second amended complaint of the Court's intent to strike causes of action two through four and six. (See *In re Marriage of Carlsson* (2008) 163 Cal.App.4th 281, 290-291; Tentative Ruling, adopted on January 21, 2026.)
- On November 12, 2025, the Court adopted the tentative ruling sustaining WJUSD's demurrer to plaintiff's first amended complaint on the issue of compliance with the Government Claims Act, which applied to all of the causes of action therein. Thus, the issue of compliance was properly before the Court on WJUSD's demurrer to plaintiff's second amended complaint as to all [remaining] causes of action, including the fifth cause of action for intentional infliction of emotional distress. (Minute Order, dated November 12, 2025; Minute Order, dated January 21, 2026.)

- The notice/service defects raised by plaintiff were admittedly presented in plaintiff's opposition to defendant WJUSD's demurrer. (*In re Marriage of Herr, supra*, 174 Cal.App.4th at p. 1468; plaintiff's MPA, p. 4, l. 5.) Moreover, WJUSD's moving and reply documents were timely filed and served.
- Plaintiff fails to provide any relevant legal authority that malice of a public employee is a basis for an exemption to the claims presentation requirement of the Government Claims Act. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc., supra*, 197 Cal.App.4th at p. 934; *Hood, supra*, 43 Cal.App.5th at pp. 73 – 74.)

Additionally, the Court finds that even if plaintiff presented new or different facts, circumstances, or law, given plaintiff failed to request oral argument on the Court's tentative ruling on WJUSD's demurrer to plaintiff's second amended complaint, plaintiff fails to show a satisfactory explanation for failing to produce evidence at an earlier time. (*Mink, supra*, 2 Cal.App.4th at p. 1342; see Minute Order, dated January 21, 2026.)

The case management conference set for March 16, 2026, is **VACATED**.

The notice of motion provides notice of this Court's tentative ruling system; however, the notice does not contain the requisite language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2021). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for leave to file third amended complaint:

Plaintiff Sherri Arfsten's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Plaintiff's motion for leave to file third amended complaint is **DENIED**. (Cal. Rules of Court, rule 3.1324; Code Civ. Proc., § 473, subd. (a)(1).) Based on the Court's ruling on plaintiff's motion for reconsideration of January 21, 2026, Order, there is no operative pleading to amend.

The notice of motion provides notice of this Court's tentative ruling system; however, the notice does not contain the requisite language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2021). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Dettling v. McAravy**
 Case No. CV2025-0205

Hearing Date: **March 3, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Linda K. Dettling's motion for leave to file an amended complaint is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 473, 576.) First, plaintiff did not file a proof of service at least five court days before the hearing, showing that defendants were properly served with the moving papers. (Cal. Rules of Court, rule 3.1300(c); see also Code Civ. Proc., § 1005, subd. (b).) Second, plaintiff does not state what allegations are proposed to be added and/or deleted and where, by paragraph and line number. (Cal. Rules of Court, rule 3.1324(a)(2)-(3).) Lastly, the supporting declaration fails to specify when facts giving rise to the amendment were discovered. (Cal. Rules of Court, rule 3.1324(b)(3).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.